



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36672208

Date: FEB. 10, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (H-2A)

The Petitioner, a farm labor contractor, seeks to temporarily employ 149 unnamed Beneficiaries as farm laborers under the H-2A nonimmigrant classification for agricultural labor or services. *See* Immigration and Nationality Act (the Act) section 101(a)(15)(H)(ii)(a), 8 U.S.C. § 1101(a)(15)(H)(ii)(a). Under the H-2A program, a qualified U.S. employer may bring certain aliens to the United States to fill temporary or seasonal agricultural jobs for which U.S. workers are not available.

The Director of the California Service Center initially approved the petition with a validity period of March 12, 2024, to October 20, 2024, but subsequently revoked the approval on notice. The Director determined, in part, that the record did not demonstrate the Petitioner's need for the Beneficiaries' services for the validity period stated on the petition and accompanying temporary labor certification. As such, the Director concluded that the statement of facts in the petition was not true and correct. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for H-2A classification, the petitioner must, among other requirements, offer a job that is of a temporary or seasonal nature, and must submit a single, valid temporary labor certification from the U.S. Department of Labor establishing that there are not enough U.S. workers who are able, willing, qualified, and available to do the temporary work, and that employing H-2A workers will not adversely affect the wages and working conditions of workers in the United States similarly employed. *See* section 101(a)(15)(H)(ii)(a) and section 218(a) of the Act, 8 U.S.C. § 1188(a).

Under USCIS regulations, the approval of an H classification petition may be revoked on notice under five specific circumstances. 8 C.F.R. § 214.2(h)(11)(iii)(A). Specifically, a director shall send to the petitioner a notice of intent to revoke the petition if they find that:

- (1) The beneficiary is no longer employed in the capacity specified in the petition; or
- (2) The statement of facts contained in the petition was not true and correct, inaccurate, fraudulent, or misrepresented a material fact; or
- (3) The petitioner violated terms and conditions of the approved petition; or
- (4) The petitioner violated requirements of section 101(a)(15)(H) of the Act or 8 C.F.R. § 214.2(h); or
- (5) The approval of the petition violated 8 C.F.R. § 214.2(h) or involved gross error.

To properly revoke the approval of a petition, a director must issue a notice of intent to revoke that contains a detailed statement of the grounds for the revocation and the time period allowed for rebuttal. 8 C.F.R. § 214.2(h)(11)(iii)(B). A director may revoke the approval of a petition at any time, even after the expiration of the petition. 8 C.F.R. § 214.2(h)(11)(i)(B).

II. ANALYSIS

The issue before us is whether the Director properly revoked the approval of the petition under the provisions at 8 C.F.R. § 214.2(h)(11)(iii)(A). For the reasons discussed below, we conclude that the approval was properly revoked under 8 C.F.R. § 214.2(h)(11)(iii)(A)(2) because the statement of facts contained in the petition was not true and correct.

The record reflects that the Director initially approved the H-2A petition with a validity period of March 12, 2024, through October 20, 2024. The petition and temporary labor certification indicate that all 149 workers would be providing farm labor for three end-clients with worksites in Florida, specifically, [REDACTED] and [REDACTED]. The Petitioner's initial evidence included copies of its "2023-2024 H-2A Agreement for Harvest" with each end-client farm, indicating they intended to use the Petitioner as their farm labor subcontractor with anticipated dates of need between March 12 and October 20, 2024.

As detailed in the Director's notice of intent to revoke (NOIR) issued on September 19, 2024, all three end-clients identified in this petition were contacted as part of a post-adjudication investigation.¹ The NOIR advised the Petitioner that, when contacted, its clients identified a need for H-2A farm laborers for the following periods:

- [REDACTED] March 2024 until June 2024
- [REDACTED] May 15, 2024 until July 15, 2024
- [REDACTED] Did not specify its specific dates of need

¹ The Director initially issued a NOIR on July 16, 2024. In that NOIR, the Director advised the Petitioner that the U.S. Consulate General in Monterrey, Mexico had returned the petition to USCIS for further review based on receipt of various derogatory reports and claims made by beneficiaries who had worked for the Petitioner under previously approved H-2A petitions. In part, the July 2024 NOIR advised that some beneficiaries authorized to work solely at end-client locations in Florida reported that they had been transported to job sites in other states. The consular return prompted additional investigation.

In its response to the NOIR, the Petitioner stated “[t]he Agency’s allegation that [the Petitioner’s] stated dates of need do not reflect the actual dates of need [is] . . . incorrect or the result of typographical errors.” The Petitioner explained that while it ultimately filed four separate H-2A petitions for the 2024 harvesting season, it had “initially intended to submit a single job order to include all of the work and requested workers included in the four petitions and [labor] certifications.” It further stated that “the dates of need for the single overarching petition would have gone through October 20, 2024, because of the needs of the [client] farms.” The Petitioner’s response included letters from representatives of [REDACTED] who stated they have worked with the Petitioner in the past and that their seasons typically run from March through October.²

After reviewing the Petitioner’s response to the NOIR, the Director concluded that the dates of intended employment provided on the petition and accompanying temporary labor certification were not true and correct and therefore misrepresented a material fact regarding the terms of employment. The Director acknowledged the letters provided by [REDACTED] indicating that they typically require H-2A workers from March through October. However, the Director observed that the owners of these two farms had indicated a shorter period of need for H-2A workers when contacted during the post-adjudication investigation of the facts stated in this petition. Therefore, the Director found these letters inconsistent with the information the same clients provided during the post-adjudication investigation.

On appeal, the Petitioner asserts that the Director “incorrectly determined that [its] end-client farms did not require workers for the entirety of [its] petition.” The Petitioner resubmits the letters from [REDACTED] previously provided in response to the NOIR, as evidence that these two clients required the services of H-2A workers through October 2024. The Petitioner specifically highlights the letter from [REDACTED] noting that he stated his farm was “not able to harvest in each month as anticipated due to the labor shortages in the U.S.” The Petitioner asserts “the Service’s contention that it learned [REDACTED] no longer needs workers in between July 15-October 20 . . . is likely due to the fact that USCIS’s revocation of the Petition destroyed the need for such work . . . that would have otherwise existed had [its] H-2A workers been allowed to perform based on the terms of the petition.”

With respect to [REDACTED] the Petitioner asserts that the Director’s notice “notably fails to state that [REDACTED] informed USCIS that the dates of need differed from those included in her letter of support,” and suggests that there was therefore no inconsistency in the record with respect to this client.³ Finally, with respect to [REDACTED] the Petitioner maintains that this client, according to the NOIR, did not identify any specific dates of need when contacted during the post-adjudication investigation and therefore did not provide inconsistent information.

The Petitioner’s assertions are not persuasive and do not overcome the Director’s determination that the dates of need stated on the petition and accompanying labor certification are not true and correct.

² The letter signed by [REDACTED] owner of [REDACTED], is undated. The letter from [REDACTED] is dated October 21, 2024, and signed by [REDACTED] on behalf of [REDACTED]. Only [REDACTED] was named as an end-client on the temporary labor certification accompanying this petition.

³ The record reflects that the [REDACTED] representative contacted during the course of the post-adjudication investigation was [REDACTED] who is listed as a co-owner on the October 21, 2024 letter provided by Ms. [REDACTED]

The Petitioner's authorized representative, by signing the employer declaration at Part 7 of the Form I-129, Petition for a Nonimmigrant Worker, and Appendix A, Part B of the temporary labor certification, took full responsibility for the accuracy of the information contained therein and certified that the information provided was true and correct.

The Petitioner maintains that the petition and accompanying temporary labor certification accurately stated that its end-clients [REDACTED] and [REDACTED] required H-2A workers for the full period between March 12 and October 20, 2024. The Petitioner asserts that USCIS's post-adjudicative actions prevented its H-2A beneficiaries from performing work for these clients for the duration of stated need and suggests that the clients had to revise their dates of need accordingly. However, the Petitioner does not attempt to explain the inconsistent information these clients provided when contacted directly about their need for the H-2A workers requested under this petition in April 2024. This contact occurred the month after the petition was approved and almost three months before the Director issued the first NOIR. The Petitioner's suggestion that the clients significantly changed their dates of need for farm laborers one month into the season due to USCIS's actions is not persuasive.

Although the Petitioner provided updated letters from [REDACTED] in response to the NOIR, these letters likewise did not explain the statements these end-clients made during the post-adjudication investigation. Neither farm's representative denies that, when contacted in April 2024, they informed government officials that they required the Petitioner's workers only from May 2024 until July 2024. They do not clarify why they would have made such statements if they did, in fact, expect the Petitioner to provide workers through October 2024.

The letter provided by [REDACTED] suggests that the Petitioner typically provides H-2A workers to [REDACTED] and two related farms "across multiple states" and that the typical season lasts from March until October. She does not state that [REDACTED] specifically required and anticipated receiving H-2A farm laborers at the single Florida location identified in the petition for the period from March to October 2024. As noted above, the Petitioner asserts on appeal that the Director "notably fails to state that [REDACTED] informed USCIS that the dates of need differed from those included in her letter of support," and suggests that there was therefore no inconsistency in the record with respect to this client. The Petitioner does not further explain, nor does it submit any clarification from the client. The only letter from this individual is the one submitted in response to the NOIR, and that letter for the reasons stated, does not resolve any inconsistencies. Further, as noted, the record does not demonstrate that USCIS had any direct contact with Ms. [REDACTED] as part of the post-adjudication investigation of this petition, as suggested by the Petitioner's statement on appeal.

The Petitioner must resolve inconsistencies in the record with independent, objective evidence pointing to where the truth lies. *Matter of Ho*, 19 I&N Dec. 582, 591-92 (BIA 1988). Here, the Petitioner's evidence submitted in response to the NOIR and on appeal does not resolve the inconsistencies in the record regarding the stated dates of need for the Beneficiaries' services.

We therefore conclude that the Director properly revoked the approval of this petition under the provision at 8 C.F.R. § 214.2(h)(11)(iii)(A)(2), which requires revocation when USCIS determines that "[t]he statement of facts contained in the petition was not true and correct, inaccurate, fraudulent, or misrepresented a material fact." Accordingly, we will dismiss the appeal.

As the identified reason for dismissal is dispositive of the Petitioner's appeal, we decline to reach and hereby reserve the remaining issues addressed in the notice of revocation.⁴ *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

For the reasons discussed above, we affirm the Director's decision to revoke the approval of the petition.

ORDER: The appeal is dismissed.

⁴ In both NOIRs and the notice of revocation, the Director addressed allegations made in the consular return memorandum from the U.S. Consulate General in Monterrey. Those allegations stemmed from reports made to U.S. consular officials by the beneficiaries of the Petitioner's prior H-2A petitions and included claims that the Petitioner had required them to pay impermissible fees and had transported them to worksite in several U.S. states that were not included on their approved petitions and temporary labor certifications. We will reserve these issues for future consideration if the need arises.